

Constituent Assembly and making of the Constitution

*The **first formal demand for the Constituent Assembly** was made by the **Swaraj Party** at a conference in **Ranchi** held in May, 1934. *The **idea** of a Constituent Assembly was put forward for the first time by **M.N. Roy in the year 1934**. *The Indian National Congress officially demanded (after the Swaraj Party) a Constituent Assembly to frame the Constitution of India for the first time in May 1934, at Patna. *In 1938 Jawahar Lal Nehru, on behalf of INC, declared that the constitution of free India must be framed, without outside interference, by a constituent Assembly elected on the basis of adult Franchise. The Demand was finally accepted in principle in the **August offer of 1940**. *The Constituent Assembly was constituted under the scheme formulated by the **Cabinet Mission Plan 1946**. *Number of representatives from provinces was based on their population i.e. **One representative per 10 Lakh people**. Of these, 296 were to be allotted to British India and 93 Seats to the Princely States. Out of 296 seats allotted to British India, 292 members were to be drawn from the eleven governor's provinces and four from the four Chief Commissioners' provinces, one from each. *The representatives of Princely states were to be nominated by the heads of the Princely states. *The elections to the constituent assembly for 296 seats were held in July-August 1946. The Indian National Congress won **208** seats, the Muslim League won 73 seats and the small groups and independents got the remaining **15** seats. *In the beginning, Princely states did not participate in Constituent Assembly, but with the third session of the Constituent Assembly commencing on 28 April, 1947 the representative of the Princely States of India began to join it gradually. *Constituent Assembly was a result of an **Indirect election**. *This election was not based on the **Adult franchise**. *According to **Government of India Act 1935**, voting rights were limited and based on tax, education and property. *The Viceroy invited the elected representatives for the first meeting of Constituent assembly on **9 December 1946**. ***207** members participated in the first meeting. The meeting was presided over by **Dr. Sachchidanand Sinha**, the **temporary President**. Later, on **11 December 1946**, **Dr. Rajendra Prasad** was unanimously elected as the President of the Constituent Assembly. It took **2 years, 11 months and 18 days** (according to the Lok Sabha and Rajya Sabha website, 2 years, 11 months and 17 days, It seems that it has not included the day of adoption of the Constitution by the Constituent Assembly) to complete the task of Constitution making. *Total 11 Sessions (165 days) were held. *On 26 November 1949, i.e. the last day of 11th session, the Constitution was adopted. **Except for these 11 sessions the constituent assembly finally met on 24 January 1950 to get the signatures of the members on the constitution.** ***Benegal Narsing Rau** (B.N. Rau) was

appointed as the constitutional advisor to the assembly. *On 26 November 1949, the people of India **adopted, enacted and gave to themselves** the constitution of India. *Some provisions of the constitution came into force on 26 November 1949 itself but it completely came into force on 26 January 1950. *The number of women in the constituent assembly was **15**. *They were 1- Vijayalakshmi Pandit, 2- Rajkumari Amrit Kaur, 3- Sarojini Naidu, 4- Sucheta Kripalani, 5- Purnima Bannerjee, 6- Leela Roy, 7- G. Durgabai, 8- Hansa Mehta, 9- Kamala Choudhry, 10- Renuka Ray, 11- Malati Choudhury, 12- Dakshyani Velayudhan, 13- Begum Aizaz Rasul, 14- Annie Mascarene and 15- Ammu Swaminathan. *The **Interim government** of India was formed on **2 September, 1946**; however, it did not include any member from the Muslim League. *Finally on 26 October 1946, **5 Members of the Muslim League** were also included in the Cabinet.

Interim Cabinet- 1946	
Members	Portfolios Held
Jawaharlal Nehru	Vice President of the council, External Affairs & Common Wealth Relations
Sardar Vallabhbhai Patel	Home, Information & Broadcasting
Dr. Rajendra Prasad	Food & Agriculture
Dr. John Mathai	Industries & Supplies
Jagjivan Ram	Labour
Sardar Baldev Singh	Defence
C.H. Bhabha	Works, Mines & Power
Liaquat Ali Khan	Finance
Abdur Rab Nishtar	Posts & Air
Asaf Ali	Railways & Transport
C. Rajagopalachari	Education & Arts
I.I. Chundrigar	Commerce
Ghazanfar Ali Khan	Health
Jogendra Nath Mandal	Law

1. Who gave the idea of a Constituent Assembly firstly for the formation of Constitution for India?

- Swaraj party in 1934
- Congress party in 1936
- Muslim League in 1942
- All Parties conference in 1946

I.A.S. (Pre) 1996

Ans. (a)

The Swaraj Party, in its conference at Ranchi in May 1934, presented the policy of Constituent Assembly. It was to be composed of Indian representatives elected on the basis of adult suffrage. It was the first occasion when Indians demanded for a Constituent Assembly.

2. Who in the beginning, presented the idea of Indian Constituent Assembly in pre independence days?

- (a) M.N. Roy (b) B.R. Ambedkar
(c) Annie Besant (d) Jawaharlal Nehru

U.P.P.S.C. (GIC) 2017

Ans. (a)

The idea of the constituent assembly was put forward for the first time by M.N. Roy in the year 1934. The first formal demand for the constituent assembly was made by the Swaraj Party at a conference in Ranchi held in May, 1934.

3. Who said, "The constituent Assembly alone can produce a Constitution indigenous to the country and truly and fully representing the will of the people"?

- (a) Mahatma Gandhi (b) Dr. B.R. Ambedkar
(c) Jawaharlal Nehru (d) Annie Besant

M.P.P.C.S. (Pre.) 2022

Ans. (a)

Mahatma Gandhi wrote an article, "The Only Way", in the Harijan of 19 November 1939, in which he expressed the view that the "Constituent Assembly alone can produce a Constitution indigenous to the country and truly and fully representing the will of the people."

4. The proposal for framing of the Constitution of India by an elected Constituent Assembly was made by

- (a) Simon Commission
(b) Government of India Act, 1935
(c) Cripps Mission
(d) British Cabinet Delegation

U.P.P.C.S. (Spl) (Mains) 2008

Ans. (c)

The proposal for framing the Constitution of India (after the end of the Second World War) by an elected Constituent Assembly was made by the Cripps Mission (1942).

5. With reference to the proposals of Cripps Mission, consider the following statements:

1. The Constituent Assembly would have members nominated by the Provincial Assemblies as well as the Princely States.
2. Any Province, which is not prepared to accept the new Constitution would have the right to sign a separate agreement with Britain regarding its future status.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2022

Ans. (b)

The Cripps mission was sent by the British government to India in March, 1942 which had the following proposals—

- Setting up Dominion status.
- Any province unwilling to join the Indian dominion could form a separate union and have a separate constitution.
- A Constituent Assembly would be formed to frame new constitution for the country.
- This assembly would have members elected by provincial assemblies and nominated by princely states. Thus statement (1) is incorrect.

6. As per Cabinet Mission plan, in the Constituent Assembly to decide allotted members seat in each province, one representative was in ratio to which population?

- (a) 8 Lakh (b) 10 Lakh
(c) 12 Lakh (d) 15 Lakh

U.P. P.C.S (Pre) 2003

Ans. (b)

The Cabinet Mission arrived in India in 1946. The Mission proposed a plan for the formation of a Constituent Assembly to frame a Constitution for the Indian Union. The representation of provinces was based on the population; roughly one representative over 10 lakh population.

7. Who among the following persons was not a member of the Cabinet Mission?

- (a) William Wood (b) Pethick-Lawrence
(c) Stafford Cripps (d) A.B. Alexander

U.P. Lower Sub. (Pre) 2015

Ans. (a)

The members of the Cabinet Mission were Sir Pethick-Lawrence (Secretary for India), Stafford Cripps (Chairman-Board of Trade) and A.V. Alexander (Navy Minister). William Wood was not a member of the Cabinet Mission.

8. Indian Constituent Assembly was established under –

- (a) Government of India Act, 1935
(b) Cripps Mission, 1942

- (c) Cabinet Mission, 1946
(d) Indian Independence Act, 1947

Uttarakhand P.C.S. (Pre) 2012

U.P. Lower Sub. (Pre) 2009

Ans. (c)

The Constituent Assembly of India was constituted under the Cabinet Mission, 1946, on the basis of Indirect election.

9. Through which plan was the Constituent Assembly created?

- (a) Cripps Mission Plan (b) Cabinet Mission Plan
(c) Simon Commission (d) None of the above

M.P. P.C.S. (Pre) 2023

Ans. (b)

See the explanation of the above question.

10. In the Interim Government formed in 1946, the Vice-President of the Executive Council was.

- (a) Jawaharlal Nehru (b) Dr. S. Radhakrishnan
(c) C. Rajagopalachari (d) Dr. Rajendra Prasad

I.A.S. (Pre) 1995

Ans. (a)

On 24 August, 1946 Interim Government was announced on a condition that Interim Government would take charge latest by 2nd September, 1946. Viceroy was the Ex-officio President of the Executive Council while Jawaharlal Nehru was designated as Vice-President of the Executive Council.

11. Who of the following was not the member of the Interim National Government formed in August 1946 A.D.?

- (a) C. Rajagopalachari (b) Dr. Rajendra Prasad
(c) Dr. S. Radhakrishnan (d) Jagjivan Ram

U.P.P.C.S. (Mains) 2010

Ans. (c)

According to the Cabinet Mission's declaration, an Interim Government was constituted on 2 September, 1946, from the newly elected Constituent Assembly. C. Rajgopalachari was the Education Minister, Dr. Rajendra Prasad was the Food and Agriculture Minister and Jagjivan Ram was the Minister for Labour. However, Dr. S. Radhakrishnan was not a member of this Interim Government.

12. Which portfolio did Dr. Rajendra Prasad hold during the interim government of 1946?

- (a) Defense (b) Home

- (c) Food and agriculture (d) None of the above

70th B.P.S.C. Re-Exam 2024

Ans. (c)

See the explanation of the above question.

13. The first Interim National Government was announced on

- (a) 24 August 1946 (b) 22 August 1946
(c) 25 August 1946 (d) 23 August 1946

U.P.P.C.S. (Pre) 2022

Ans. (a)

See the explanation of the above question.

14. Assertion (A) : According to the Wavell Plan, the number of Hindu and Muslim members in the Executive Council was to be equal.

Reason (R) : Wavell thought that this arrangement would have avoided the partition of India.

Code :

- (a) Both (A) and (R) are individually true, and (R) is the correct explanation of (A).
(b) Both (A) and (R) are individually true, but (R) is not the correct explanation of (A).
(c) (A) is true, but (R) is false.
(d) (A) is false, but (R) is true.

I.A.S. (Pre) 2007

Ans. (c)

In October, 1943 Lord Wavell, who had succeeded Lord Linlithgow as viceroy, made an attempt to resolve the deadlock in India. He went to England for consultation in March, 1945. There, he thoroughly discussed with the British Government about Indian administration and made some proposals. In June 1945, his proposals were made public by the name of the Wavell Plan. He proposed restructuring of the Governor-General's Executive Council, which would have balanced the representation of the main communities, including equal proportions of Muslims and Hindus. All the portfolios except Defence were to be held by Indian members, including the foreign department. The Wavell Plan proposed an equal representation of Hindus and Muslims in the Executive Council. Apart from Viceroy and Commander in chief in the Executive Council, all members were to be

Indian. Earliest possible, a conference at Shimla was to be convened. It was also proposed that, after the end of the second world war, a Constitution for India was to be made by Indians. Thus it is clear that the Wavell Plan was intended to remove the deadlock on Constitutional matters and political issues and to promote the self-governance for Indians but never intended to unite the Hindu-Muslim to avoid partition of India. Thus the statement is true, but the Reason is false.

15. Which of the following statement(s) is/are true in relation to Constituent Assembly?

1. Assembly was based on adult suffrage.
2. The assembly was a result of direct election.
3. Assembly was a multiparty body.
4. Assembly worked through various committees.

Choose the correct answer by using the code given below:

Code:

- | | |
|-------------|-------------------|
| (a) 1 and 2 | (b) 2 and 3 |
| (c) 3 and 4 | (d) 1, 2, 3 and 4 |

I.A.S. (Pre) 1993

Ans. (c)

The Legislative Assemblies of States were used as the Electoral College for the formation of the Constituent Assembly. In this way, the Constituent Assembly was a result of the indirect election. Its election was not based on adult suffrage. People of several parties were involved in it, the Constituent Assembly formed a number of committees to operate its work.

16. Which of the following statements are correct regarding to Indian Constituent Assembly?

- (A) It was not based on Adult Franchise.
- (B) It resulted from direct election.
- (C) It was not a multi-party body.
- (D) It worked through several committees.

Select the correct answer using code given below:

Code :

- | | |
|-----------------|---------------------------|
| (a) (A) and (D) | (b) (A) and (B) |
| (c) (B) and (C) | (d) (A), (B), (C) and (D) |

R.A.S/R.T.S (Pre) 2018

Ans. (a)

The Constituent Assembly was to be partly elected and partly nominated.
The members were to be indirectly elected by the members of the provincial assembly, who themselves were elected on a limited franchise.

It was a multi- party body; the Congress, the Muslim League and some independent members, also got representation. The Constituent Assembly appointed a number of committees to deal with different tasks of constitution- making. Out of these, 8 were major committees and others were minor committees.

17. Which one among the following is an incorrect statement about the Constituent Assembly?

- (a) It worked with the help of a large number of committees, the most important among them being the Drafting Committee
- (b) Minority communities like Christians, Anglo-Indians, and Parsis were adequately represented in the Assembly
- (c) It was elected on the basis of universal adult franchise
- (d) Its electoral process was based on the sixth schedule of the Act of 1935 which allowed for a restricted franchise based on tax, property and educational qualification

M.P.P.C.S. (Pre) 2012

Ans. (c)

The members of the Constituent Assembly were elected by the members of the Legislative Assembly of Provinces on the basis of indirect election, and not on the basis of the Universal Adult franchise. The Members of Provincial legislatures were themselves elected on the basis of limited franchise, i.e. on the basis of the qualifications of education, property and tax. Universal Adult Franchise enables all citizens to be involved in the governance of their state based on adult suffrage.

18. Member of constituent assembly, who drafted the Constitution of India, were-

- (a) Nominated by British parliament
- (b) Nominated by Governor General
- (c) Elected by legislative assemblies of various provinces
- (d) Elected by Indian National Congress and Muslim League

I.A.S. (Pre) 2002

Ans. (c)

Members of the constituent Assembly were elected by the members of Legislative Assemblies of various provinces. Each province and each Indian State or group of states were allotted the total number of seats proportional to their respective population, roughly in the ratio of one to a million. As a result, 292 members were elected through the Provincial Legislative Assemblies and 4 members represented the Chief Commissioner's Provinces, while the Indian Princely states were allotted a minimum of 93 seats.

19. With reference to Indian History, the Members of the Constituent Assembly from the Provinces were

- (a) Directly elected by the people of those Provinces
- (b) Nominated by the Indian National Congress and the Muslim League
- (c) Elected by the Provincial Legislative Assemblies
- (d) Selected by the government for their expertise in constitutional matters

I.A.S. (Pre) 2013

Ans. (c)

See the explanation of the above question.

20. How were the members of Constituent Assembly elected?

- (a) Directly by public
- (b) Nominated by Congress
- (c) Nominated by Indian ruler
- (d) By Provincial Assemblies

U.P.P.C.S. (Pre) 1993

Ans. (d)

See the explanation of the above question.

21. Who was the Provisional President of the Constituent Assembly before Dr. Rajendra Prasad took over?

- (a) C. Rajagopalachari
- (b) Dr. B. R. Ambedkar
- (c) T.T. Krishnamachari
- (d) Dr. Sachchidananda Sinha

I.A.S. (Pre) 2024

Ans. (d)

The first meeting of the Constituent Assembly of India took place in Constitution Hall, New Delhi, on 9th December 1946. In this meeting, the oldest member of the Constituent Assembly, Dr. Sachchidananda Sinha became the Temporary or Provisional Chairman (President) of the Assembly. He served as Provisional President of the Assembly before Rajendra Prasad was formally elected (Unanimously) and took over as President, on 11 December, 1946.

22. Who was the first elected Chairman of Constituent Assembly?

- (a) Dr. B. R. Ambedkar
- (b) Dr. Sachchidanand Sinha
- (c) Dr. Rajendra Prasad
- (d) Dr. S. Radhakrishnan

Chhattisgarh P.C.S. (Pre) 2005

Ans. (c)

Dr. Sachchidanand Sinha temporarily chaired the first meeting of the Constituent Assembly, which was held on 9 December, 1946. The Constituent Assembly unanimously elected Dr. Rajendra Prasad as permanent Chairman on 11 December 1946. Dr. Rajendra Prasad's name was proposed by J.B. Kripalani.

23. Who chaired the first meeting of Constituent Assembly?

- (a) Dr. Rajendra Prasad
- (b) Dr. Bhimrao Ambedkar
- (c) Dr. Sachchidanand Sinha
- (d) Maulana Abul Kalam Azad

U.P.P.C.S. (Pre) 1990

Ans. (c)

See the explanation of the above question.

24. The first-day session of Indian Constituent Assembly was chaired by –

- (a) Dr. Rajendra Prasad
- (b) Dr. Sachchidanand Sinha
- (c) Dr. B.R. Ambedkar
- (d) Pt. Jawaharlal Nehru

U.P.P.C.S. (Mains) 2013

Ans. (b)

See the explanation of the above question.

25. Dr. Rajendra Prasad was elected the Chairman of the Constituent Assembly in

- (a) September 1946 AD (b) October 1946 AD
- (c) November 1946 AD (d) December 1946 AD
- (e) None of the above/More than one of the above

67th B.P.S.C. (Pre) (Re- Exam), 2022

Ans. (d)

See the explanation of the above question.

26. What are true about Constituent Assembly?

- (i) Constituent Assembly's first meeting was held on 9th December, 1946.
 - (ii) Its first permanent President was Dr. Sachchidanand Sinha.
 - (iii) Muslim League boycotted first meeting of Constituent Assembly.
- (a) (i), (ii) and (iii) (b) (i) and (iii)
 - (c) (i) and (ii) (d) None of the above

Chhattisgarh P.C.S. (Pre) 2022

Ans. (b)

See the explanation of the above question.

27. Statement I : The first meeting of the Constituent Assembly was held on 9th December, 1946 in New Delhi.

Statement II : Jawaharlal Nehru was not invited to the Constituent Assembly.

Which of the following options is correct?

- (a) Both Statement I and Statement II are true.
- (b) Both Statement I and Statement II are false.
- (c) Statement I is true, but Statement II is false.
- (d) Statement I is false, but Statement II is true.

M.P.P.C.S. (Pre) 2025

Ans. (c)

The inaugural session of the Indian Constituent Assembly was convened on December 9, 1946, in New Delhi. The gathering was held in the Constitution Hall, which is presently known as the Central Hall of Parliament House. It is important to mention here that Nehru was a member of the constituent assembly from the very first day of its proceedings and on 13th December 1946, he presented Objective Resolution, so statement 2 is wrong.

28. Who was the Chairman of 'Constituent Assembly' of India?

- (a) Dr. Rajendra Prasad (b) Dr. B.R. Ambedkar
- (c) Mr. Ayyar (d) Pandit Jawaharlal Nehru

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (a)

See the explanation of the above question.

29. Who was the President of the Constituent Assembly of Independent India?

- (a) Dr. Bhimrao Ambedkar
- (b) Dr. Rajendra Prasad
- (c) C. Rajagopalachari
- (d) K.M. Munshi

M.P.P.C.S. (Pre) 2010

Ans. (b)

See the explanation of the above question.

30. Who was the first nominated Deputy Chairman of the Constituent Assembly?

- (a) T.T. Krishnamachari (b) V.T. Krishnamachari
- (c) H.C. Mukherjee (d) Frank Anthony

M.P.P.C.S. (Pre) 2020

Ans. (d)

Frank Anthony was the first nominated temporary Deputy Chairman of the Constituent Assembly. He was nominated on 9 Dec, 1946 by the temporary chairman of the constituent assembly Dr. Sachchidanand Sinha. He established the All India Anglo-Indian Association in 1942. He served as a nominated member of the Lok Sabha for seven terms between 1950 and 1992. H.C. Mukherjee was the first permanent vice-president of Constituent Assembly.

31. Constituent Assembly of India was established on:

- (a) 10 June, 1946 (b) 09 December, 1946
- (c) 26 November, 1949 (d) 26 December, 1949

U.P.P.C.S. (Pre) 1995

Ans. (b)

The Indian Constituent Assembly was established with the commencement of its first meeting on December 9, 1946. The first session of the Constituent Assembly began on 9 December 1946, and ended on 23 December, 1946. The session was attended by 207 Members (according to Rajya Sabha Website). In the fifth meeting, Pandit Jawaharlal Nehru laid down the objective resolution.

32. The first Session of Constituent Assembly was held on :

- (a) 9th December, 1946
- (b) 15th August, 1947
- (c) 26th November, 1949
- (d) 26th January, 1946
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) (Re- Exam), 2020

Ans. (a)

See the explanation of the above question.

33. When was the Constituent Assembly established?

- (a) December, 1946 (b) December, 1948
- (c) November, 1950 (d) December, 1951

U.P.P.C.S. (Pre) 1990

Ans. (a)

See the explanation of the above question.

34. When was the first session of the constituent assembly held?

- (a) 10 June, 1946 (b) 9 December, 1946
- (c) 19 November, 1947 (d) 30 June, 1949

U.P.P.C.S. (Pre) 1990

Ans. (b)

See the explanation of the above question.

35. When did the Indian Constituent Assembly meet for the first time?

- (a) 26 January, 1950 (b) 15 August, 1947
(c) 9 December, 1946 (d) 19 November, 1949

U.P.P.C.S (Mains) 2011

Ans. (c)

See the explanation of the above question.

36. In which meeting of the Constituent Assembly of India did Jawaharlal Nehru laid down the objective resolution?

- (a) Second (b) Third
(c) Fourth (d) Fifth

M.P.P.C.S. (Pre), 2021

Ans. (d)

On 13 December, 1946, Jawaharlal Nehru introduced Objective Resolution, in the fifth meeting of the first session of the Constituent Assembly. Which gave accurate philosophy and guiding principles for constitution- making and later on took the form of the preamble to the constitution of India.

37. When did Nehru introduce the "Objective Resolution" in the constituent Assembly?

- (a) 9th December, 1946 (b) 28th April, 1947
(c) 22nd January, 1947 (d) 13th December, 1946

M.P.P.C.S. (Pre.) 2022

Ans. (d)

Jawaharlal Nehru proposed the historic "Objectives Resolution" in the Assembly on December 13, 1946. It established the principles and foundation of the constitutional framework. The Assembly, on January 22, 1947, unanimously adopted this Resolution. It had an impact on how the constitution ultimately came to be and all of its later phases. Its amended form serves as the Preamble to the current Constitution.

38. The resolution for giving a Constitution to India was adopted by the Constituent Assembly on:

- (a) 22 January, 1946 (b) 22 January, 1947
(c) 20 February, 1947 (d) 26 July, 1946

U.P.P.C.S. (Pre) 1998

Ans. (b)

On 22 January, 1947, a resolution for the Constitution of India was unanimously adopted by the Constituent Assembly, which was presented by Jawaharlal Nehru on 13 December, 1946.

39. Who proposed the Preamble before the Drafting Committee of the Constitution?

- (a) Jawaharlal Nehru (b) B. R. Ambedkar

(c) B. N. Rao

(d) Mahatma Gandhi

Uttarakhand P.C.S. (Mains) 2006

Ans. (a)

The proceedings of the Constituent Assembly started with the Objectives Resolution presented by Jawaharlal Nehru on 13 December, 1946. The Objective Resolution was unanimously passed on 22 January, 1947. Later, this Objective Resolution became the foundation of the Preamble of the Constitution.

40. Who of the following presented the objectives resolution?

- (a) Dr. B. R. Ambedkar
(b) Pt. Jawaharlal Nehru
(c) Dr. Rajendra Prasad
(d) Dr. C. D. Deshmukh

U.P.P.C.S. (Mains) 2007

Ans. (b)

See the explanation of the above question.

41. In relation to formation of the Constitution of India which of the following sentences is/are correct-

1. Resolution of objectives by Nehru affected the making of the Constitution.
2. Preamble fulfils various important objectives/aims.
3. Peoples of India ordered/directed the Constitution
4. Head of the state is elected by the people directly.

Code:

- (a) 1,2 and 3 (b) 1, 3 and 4
(c) 2,3 and 4 (d) All of the above

U.P.P.C.S. (Mains) 2010

Ans. (a)

Under the Indian Constitution, the head of the State, i.e. the President, is not elected by the people directly but by people's representatives which include elected members of both the Houses of Parliament, elected members of the State Legislative Assemblies of all the States including Union Territories. the other three Sentences are correct.

42. How many Sessions of the Indian Constituent Assembly were conducted for the formulation of Indian Constitution?

- (a) 7 (b) 9
(c) 12 (d) 15

U.P. P.C.S. (Mains) 2005

Ans. (c)

The Constituent Assembly took 2 years, 11 months and 18 days to complete its historic task of drafting the Constitution. During this period, there were 11 sessions covering a total of 165 days. On 26 November 1949, the last day of the 11th session, the constitution was adopted. Apart from these eleven sessions, one more meeting was held on 24 January, 1950 in which the members appended their signature. So, the nearest correct answer is option (c).

43. Mention the correct date of the last meeting of the Constituent Assembly of India?

- (a) 26 Nov. 1949 (b) 5 Dec. 1949
(c) 24 Jan. 1950 (d) 25 Jan. 1950

U.P.P.C.S. (Pre) 2018

Ans. (c)

See the explanation of the above question.

44. How much time the Constituent Assembly took to frame the Constitution of India?

- (a) 2 years, 11 months, 18 days
(b) 2 years, 7 months, 23 days
(c) 3 years, 4 months, 14 days
(d) 3 years 11 months 5 days

U.P.P.C.S. (Mains) 2007

Ans. (a)

See the explanation of the above question.

45. What was the duration in the making of the Indian Constitution?

- (a) 2 years 11 months and 18 days
(b) 1 year 10 months and 12 days
(c) 2 years 10 months and 5 days
(d) More than one of the above
(e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (a)

See the explanation of the above question.

46. Consider the following statements regarding the Constituent Assembly of India :

(i) The final session of the Constituent Assembly was held on 24th January, 1950.

(ii) Dr. Rajendra Prasad was declared to be duly elected to the office of President of India in this final session.

- (a) Neither (i) nor (ii) is correct.
(b) Both (i) and (ii) are correct.
(c) only (ii) is correct.
(d) only (i) is correct.
(e) Question not attempted

Raj. P.C.S. (Pre) 2023

Ans. (b)

The Constituent Assembly was constituted to frame the Constitution of India, under the scheme formulated by the Cabinet Mission Plan, consisting of three members (Lord Pethick Lawrence, Sir Stafford Cripps and A.V. Alexander) which arrived in India on March 24, 1946. The Constituent Assembly held its first meeting on December 9, 1946. The Constituent Assembly had 11 sessions over 2 years. 11 months and 18 days. On January 24, 1950, the Constituent Assembly held its final session. On that day, it adopted the national anthem, the national song and elected Dr. Rajendra Prasad as the first President of India.

47. Match List-X with List-Y and select the correct answer by using the codes given below:

List-X

List-Y

- A. First Vice- President of Constituent Assembly** (i) V.T. Krishnamachari
B. Originally the only Congress Member of Drafting Committee (ii) Jawaharlal Nehru
C. Member of Constituent Assembly representing Rajasthan's Princely State (iii) K.M. Munshi
D. Chairman of Union Constitution Committee (iv) H.C. Mukherjee

Code:

- | | A | B | C | D |
|-----|-----|-----|-----|-----|
| (a) | i | iv | ii | iii |
| (b) | iv | iii | i | ii |
| (c) | i | ii | iii | iv |
| (d) | iii | iv | i | ii |

R.A.S./R.T.S. (Pre) 2013

Ans. (b)

The correctly matched pairs are as follows:

First Vice - President of Constituent Assembly	- H.C. Mukherjee
The Only Congress member of drafting committee	- K.M. Munshi.
Representative of Rajasthan's Princely state	- V.T. Krishnamachari
Chairman of the Union Constitution Committee	- Jawaharlal Nehru.

Note : The First temporal Vice-President of the Constituent Assembly was Frank Anthony, who was nominated by the then temporal President Sachchidananda Sinha on 9 December, 1946. H.C. Mukherjee was the first permanent Vice-President of the Constituent Assembly.

48. Who was the Constitutional Advisor at the time of the formation of the Constitution?

- (a) Dr. B.R. Ambedkar
- (b) Dr. Rajendra Prasad
- (c) B.N. Rau
- (d) K.M. Munshi

U.P.P.C.S. (Pre) 2014

U.P. Lower Sub. (Pre) 1998

Jharkhand P.C.S. (Pre) 2003

Uttarakhand U.D.A./L.D.A. (Pre) 2007

Ans. (c)

Sir Benegal Narsing Rau (B.N. Rau) was appointed as the constitutional advisor during the formation of the Constitution.

49. The first draft of the Constitution was prepared by-

- (a) B.R. Ambedkar
- (b) B.N. Rau
- (c) K. Santhanam
- (d) K.M. Munshi

U.P. Lower (Pre) 2009

Ans. (b)

The first draft of the Constitution was prepared by the constitutional advisor B.N. Rau which was put before drafting committee for opinion, discussion and changes in it. The original draft proposed by Mr. Rau included 243 Articles and 13 Schedules.

50. When was the third reading of the Indian Constitution Started in the constituent Assembly?

- (a) 14th November, 1949
- (b) 14th November, 1948
- (c) 25th November, 1948
- (d) 25th November, 1949

U.P.P.S.C. (R.I.) 2014

Ans. (*)

The third reading of the Constitution by the Constituent Assembly was started on 17 November, 1949 and completed on 26 November, 1949. Hence, none of the given options are correct.

51. The Constitution of India was completed on:

- (a) January 26, 1950
- (b) November 26, 1949
- (c) February 11, 1948
- (d) None of the above is correct

U.P.P.C.S. (Mains) 2010

U.P.P.C.S. (Pre) 2002

Ans. (b)

The Preamble of the Constitution states, "We the People of India enact, adopt and give to ourselves this Constitution on 26 November, 1949". This date is considered as the date of adoption, completion and passing of the Constitution. On the same day the provisions relating to Citizenship, Interim Parliament and Temporary, Transitional and special provisions came into effect. The rest of the provisions came into effect on 26 January, 1950. Thus 26 January, 1950 is considered as the enforcement date of the whole Constitution.

52. Indian Constitution was adopted by the Constituent Assembly on -

- (a) 26 November, 1949
- (b) 15 August, 1949
- (c) 2 October, 1949
- (d) 15 November, 1949

43rd B.P.S.C. (Pre) 1990

Ans. (a)

See the explanation of the above question.

53. Constitution was adopted by constituent assembly on -

- (a) 15 August, 1947
- (b) 30 June, 1948
- (c) 26 November, 1949
- (d) 26 January, 1950

U.P.U.D.A./L.D.A. (Pre) 2006

Ans. (c)

See the explanation of the above question.

54. The Constitution of India was adopted on which date?

- (a) 26 January, 1950
- (b) 26 November, 1949
- (c) 26 January, 1949
- (d) 15 July, 1947

M.P.P.C.S. (Pre) 2010

M.P.P.C.S. (Pre) 1998

Ans. (b)

See the explanation of the above question.

55. Constitution of India came into force on -

- (a) 26 January, 1950
- (b) 23 January, 1950
- (c) 15 August, 1947
- (d) 26 December, 1949

U.P.P.C.S. (Pre) 1990

Ans. (a)

See the explanation of the above question.

56. Constitution of India came into force on :

- (a) November 26, 1949
- (b) January 26, 1950
- (c) August 15, 1950
- (d) None of the above

Chhattisgarh P.C.S. (Pre) 2023

Ans. (b)

The Republic is governed in terms of the Constitution of India, which was adopted by the Constituent Assembly on 26th November, 1949 and came into force on 26th January, 1950. Notably, the Constitution provides for a parliamentary form of government, which is federal in structure with certain unitary leaning.

57. January 26 was selected as the date for the inauguration of the Constitution, because-

- (a) The Congress had observed it as the Independence Day in 1930.
- (b) On that day the Quit India Movement was started in 1942.
- (c) It was considered to be an auspicious day.
- (d) None of the above.

53rd to 55th B.P.S.C. (Pre) 2011

Ans. (a)

The Purna Swaraj declaration was promulgated by the Indian National Congress in the Lahore Session (December, 1929), where Congress asked the people of India to observe 26 January as Independence Day. After that, Congress regularly observed 26 January as the Independence Day of India. The new Constitution of India, as drafted and approved by the Constituent Assembly of India, was mandated to come into effect from 26 January 1950, to commemorate the 1929 declaration.

58. Constitution Day of India is celebrated on

- (a) 26th October
- (b) 26th November
- (c) 26th January
- (d) 15th August
- (e) None of the above/More than one of the above

60th to 62nd B.P.S.C. (Pre) 2016

Ans. (b)

The Constitutional Day of India is celebrated on 26th November since the new Constitution of India was adopted by the constituent Assembly on 26th November, 1949 and signed by President Rajendra Prasad. Some of the provisions of the constitution came into force at once, while the remaining provisions of the Constitution came into force on 26th January, 1950, the commencement date of the constitution.

59. Consider the following statements in respect of the Constitution Day:

Statement-I :

The Constitution Day is celebrated on 26th November every year to promote constitutional values among citizens.

Statement-II :

On 26th November, 1949, the Constituent Assembly of India set up a Drafting Committee under the Chairmanship of Dr. B. R. Ambedkar to prepare a Draft Constitution of India.

Which one of the following is correct in respect of the above statements?

- (a) Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I
- (b) Both Statement-I and Statement-II correct and Statement-II is not the correct explanation for Statement-I
- (c) Statement-I is correct but Statement-II is incorrect
- (d) Statement-I is incorrect but Statement-II is correct

I.A.S. (Pre.) 2023

Ans. (c)

The November 26 marks Constitution Day, also called "Samvidhan Divas," to remember the day on which the Indian Constitution was adopted. In an effort to encourage individuals to uphold the principles of the Constitution, the Indian government decided to declare November 26th as "Constitution Day," which was announced by the Ministry of Social Justice and Empowerment on November 19, 2015.

Among all the committees of the Constituent Assembly, the most important committee was the Drafting Committee set up on August 29, 1947. It was this committee which was entrusted with the task of preparing a draft of the new Constitution. It consisted of seven members under the chairmanship of Dr. B.R. Ambedkar. Hence, Statement I is correct, but Statement II is incorrect.

60. Indian Constitution was adopted by –

- (a) Constituent Assembly
- (b) British Parliament
- (c) Governor-General
- (d) Indian Parliament

39th B.P.S.C. (Pre) 1994

Ans. (a)

It is explicitly mentioned in the Preamble itself that the Constitution was adopted and enacted by the Constituent Assembly (at its 11th session) on 26 November, 1949.

61. The Constitution of India was enacted on 26 November, 1949 by the –

- (a) Constituent Assembly
- (b) Governor General of India
- (c) Parliament of India
- (d) British Parliament

U.P. P.C.S. (Mains) 2012

Ans. (a)

See the explanation of the above question.

62. The Constitution of India was adopted and enacted on –
 (a) 26 January, 1950 (b) 11 February, 1948
 (c) 26 November, 1949 (d) None of the above dates

U.P.P.C.S. (Mains) 2013

U.P.P.C.S. (Mains) 2015

Ans. (c)

See the explanation of the above question.

63. Consider the following events and arrange these in correct chronological order starting from the earliest to the last activity :

- (I) Appointment of the Drafting Committee
 (II) Indian Constitution was adopted and enacted
 (III) Date of commencement of Indian Constitution
 (IV) Constitution Assembly first met

Select the correct answer from the code given below :

Code :

- (a) IV, I, II, III (b) I, II, IV, III
 (c) IV, I, III, II (d) III, II, I, IV

U.P.P.C.S. (Pre.) 2023

Ans. (a)

Appointment of the Drafting Committee- 29 August, 1947.
 Indian constitution was adopted and enacted- 26 November, 1949
 Date of commencement of Indian Constitution- 26 January, 1950
 Constitution/Constituent Assembly first met- 9 December, 1946
 Hence, option (a) is correct answer.

64. B.R. Ambedkar was elected to the Constituent Assembly from–

- (a) West Bengal (b) Bombay Presidency
 (c) Middle India (d) Punjab

I.A.S. (Pre) 1996

Ans. (b)

In the preliminary election held in 1946, Dr. Ambedkar was elected from the eastern part of undivided Bengal. Later on, this region became part of Pakistan and then Ambedkar was elected as a member of the Constituent Assembly from Pune seat of Bombay Presidency which was made vacant by the resignation of M.R. Jaikar (of congress). Since Dr. Ambedkar was elected from East Bengal, not West Bengal; so, option (b) is the correct answer.

65. Year of birth and death of Dr. B.R. Ambedkar -

- (a) 1886, 1951 (b) 1891, 1956

- (c) 1877, 1961 (d) 1889, 1961

M.P. P.C.S. (Pre) 1992

Ans. (b)

Dr. Ambedkar, who played a prominent role in drafting the Constitution, was born on 14 April, 1891 at Mahu, Madhya Pradesh and died on 6 December, 1956 at Delhi.

66. Consider the following statements:

- The discussions in the Third Round Table Conference eventually led to the passing of the Government of India Act, 1935.
- The Government of India Act, 1935 provided for the establishment of an All India Federation to be based on a Union of the Provinces of British India and the Princely States.

Which of the statement(s) given above is/are correct?

- (a) 1 only (b) 2 only
 (c) Both 1 and 2 (d) Neither 1 nor 2

I.A.S. (Pre) 2009

Ans. (c)

During the Third Round Table Conference, a plan was presented to finalize the Government of India Act 1935. In this Act, provision was made to form an All India Federation comprising of states of British India and Princely states. From above, it is clear that both statements are true. The Third and last Round Table Conference was organized in November-December 1932 in London' and congress did not participate in the conference.

67. Here are two statements:

Statement(A) : The Constitution of India provides for all necessities of the country.

Reason (R) : It is known or called as 'Adopted' Constitution.

In relation to aforesaid which one is true ?

- (a) (A) and (R) both are true and (R) is correct explanation of (A).
 (b) (A) and (R) both are true but (R) is not the correct explanation of (A).
 (c) (A) is true but (R) is wrong.
 (d) (A) is wrong but (R) is true.

U.P. P.C.S. (Spl) (Mains) 2008

Ans. (b)

The Indian Constitution is able to provide for all the necessities of the country. It is also well-versed to future prospects as it contains a provision for amendments. On the other hand, it takes views and principles from the constitutions of various other countries. Thus, it may be called as 'Adopted Constitution'. Thus, both (A) and (R) are true, but (R) is not the correct explanation of (A).

68. Deferment of Adult Franchise for fifteen years was advocated in Constituent Assembly by –

- (a) Dr. Rajendra Prasad
- (b) Jawaharlal Nehru
- (c) Maulana Azad
- (d) Dr. Bhim Rao Ambedkar

M.P.P.C.S. (Pre) 2010

Ans. (c)

At the time of discussion on the adult franchise, Maulana Azad in the Constituent Assembly pleaded for the Deferment of the Adult Franchise for 15 years, but Dr. Rajendra Prasad and Jawaharlal Nehru strongly supported its adoption.

69. Who amongst the following advised that the Indian National Congress should be disbanded as a political party after the independence of India?

- (a) C. Rajagopalachari
- (b) Jai Prakash Narayan
- (c) Acharya Kripalani
- (d) Mahatma Gandhi

U.P.P.C.S. (Mains) 2011

Ans. (d)

Mahatma Gandhi suggested that the Indian National Congress was formed only to achieve Independence and should be disbanded as a political party after the Independence of India.

70. Which one of the following said, "A Constitution, like a machine, is a lifeless thing. It acquires life because of the men who control it and India needs today nothing more than a set of honest men who will have the interest of the country before them"?

- (a) Dr. Rajendra Prasad
- (b) Jawahar Lal Nehru
- (c) Dr. B.R. Ambedkar
- (d) Mahatma Gandhi

R.A.S./R.T.S. (Pre) 2021

Ans. (a)

The statement in the question was made by the Chairman of the Constituent Assembly and the First President of India, Dr. Rajendra Prasad. This Statement is a part of his speech during the adoption of the Indian Constitution on 26 November 1949.

71. "In their nationalist reaction, the Founding Fathers of Indian Constitution tended to minimize the importance of minority interests and emotions."

This view is credited to:

- (a) Morris Jones
- (b) Hardgrave Junior
- (c) Alexandrovitz
- (d) Ivor Jennings

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (d)

The above comment was made by Sir Ivor Jennings on the provisions for the protection of Minorities in the Indian Constitution.

72. "Constituent Assembly was Congress and Congress was India" who said this?

- (a) Austin
- (b) C.R. Attlee
- (c) Winston Churchill
- (d) Lord Mountbatten

U.P.U.D.A./L.D.A. (Pre) 2013

Ans. (a)

The above statement that "Constituent Assembly was Congress and Congress was India" was made by the famous historian and Padmasri award holder Granville Austin, in his book- "The Indian Constitution".

73. How many women members were there in the Indian Constituent Assembly?

- (a) 15
- (b) 13
- (c) 12
- (d) 10

U.P.P.S.C. (R.I.) 2014

Ans. (a)

The total number of women members in the Constituent Assembly was 15. They were – (1) Ammu Swaminathan (2) Annie Mascarene, (3) Sarojini Naidu, (4) Dakshayani Velayudhan, (5) G. Durgabai Deshmukh, (6) Hansa Mehta, (7) Kamala Choudhury, (8) Leela Roy, (9) Malati Choudhury, (10) Rajkumari Amrit Kaur, (11) Renuka Ray, (12) Purnima Banerjee, (13) Begum Aizaz Rasul, (14) Sucheta Kripalani, (15) Vijayalakshmi Pandit.